

Quash Service of Summons

Defendant Hardcastle argues that he was not personally served with the summons and complaint. He indicates that he resides at the service address: 618 E. Home Avenue, Fresno, CA 93728, and that the documents were delivered to his wife.

"If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, . . . a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, . . . in the presence of a competent member of the household . . . who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

"The filing of a proof of service creates a rebuttable presumption that the service was proper." (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.) A declaration of service by a registered process server establishes a presumption that the facts stated in the declaration are true. (Evid. Code, § 647.)

The court takes judicial notice of its own docket and notes that a proof of service of summons along with a declaration of due diligence and proof of service by mail are filed on May 11, 2026, to support the service of summons and the complaint to Defendant Hardcastle by substitute service. The proof of service of summons, declaration of due diligence, and proof of service by mail are each signed by a registered process server. The proof of service of summons provides that Defendant Hardcastle was served by substitute service. The documents were delivered to his wife, Laura Hardcastle at his residence, and the process server informed her of the general nature of the papers. (See the Proof of Service of Summons filed on May 11, 2026.) The declaration of due diligence indicates three unsuccessful attempts at personal service at his residence before the documents were served by substituted service on April 15, 2026. (See the Declaration of Due Diligence, filed on May 11, 2026.) Additionally, the process server indicates that the documents were mailed to Defendant Hardcastle's address by First Class mail with postage prepaid. (See the Proof of Service by Mail, filed on May 11, 2026.)

The proof of service of summons complies with the applicable statutory requirements, and therefore, the service was proper.

Therefore, the motions to set aside default and to quash service of summons are denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** September 21, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Pismo's of Fresno LLC v. Villagio Shopping Center LLC et al.***
Superior Court Case No. 25CECG04448

Hearing Date: September 22, 2026 (Dept. 403)

Motion: Motion to Quash Subpoena

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on September 21, 2026.
(Judge's initials) (Date)